



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 14, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21257
(FIRST REVISION)

EXPIRATION DATE: 2028-02-29

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: The Procter & Gamble Company
Cincinnati, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of non-flammable, non-toxic compressed gases (Division 2.2) in DOT Specification 2S and non-DOT specification plastic aerosols not exceeding 1 L capacity designed and tested through an in-line pressure testing approach under a quality management system. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an “exemption” as defined in 1;3.1.1 of the ICAO TI and Chapter 7.9, Section 7.9.1 of the IMDG Code (see IMO MSC/Circ. 1075-Granting Exemptions from the Provisions of the IMDG Code) and as a “Competent Authority Approval” as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180, ICAO TI, and IMDG Code.

Tracking Number: 2023095069

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a)(5)(v), 173.306(a)(5)(vi) in that automated in-line pressure checks are not authorized for DOT Specification 2S or non-DOT specification plastic aerosols except as specified herein, and Packing Instructions 203 – Plastic aerosols, Y203 – plastic aerosols, 6;3.2.8.1.6 and 6;5.4 of the ICAO TI, and 3.3.1, Special Provision 344 and 6.2.4 of the IMDG Code.
5. BASIS: This special permit is based on the application of The Procter & Gamble Company dated October 10, 2023, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Aerosols, non-flammable, (each not exceeding 1 L capacity)	2.2	UN1950	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging are DOT specification 2S and non-DOT specification, non-refillable plastic inside containers with a capacity not exceeding 1 liter. For transportation aboard aircraft under the ICAO TI, the packagings may not exceed 500 mL capacity.

b. OPERATIONAL CONTROLS:

(1) In lieu of the hot water bath test in 49 CFR 173.306(a)(5)(v) and the alternative leakage test in 49 CFR 173.306(a)(5)(vi), each completed container must be subjected to an automated, in-line pressure check as described in the application.

(2) If the pressure measured in any container during the in-line pressure check is outside the range set forth below, then the container must be rejected:

<u>Container Type</u>	<u>Pressure Range*</u>
Non-specification	<140 psig
DOT-2S	≤160 psig

*NOTE: For each container type, the lading's 130°F pressure value falls within the given range.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each container must be marked "DOT-SP 21257" and shipped in strong outside packagings.

d. Aerosols tested in accordance with this special permit are authorized to be transported as limited quantities in accordance with 49 CR 173.306(i)(1).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo-aircraft only, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Jephthah Nti